

TACC, not the 4th ACC. “Because there is but one complaint in a civil action, the filing of an amended complaint moots a motion directed to a prior complaint.” (*S.C. v. Doe 1* (2025) 115 Cal.App.5th 365, 384.) Once a pleading has been superseded, the court may not sustain a demurrer or grant summary adjudication on a cause of action contained in a previous complaint. (*JKC3H8 v. Colton* (2013) 221 Cal.App.4th 468, 477.) The party seeking summary adjudication must file a subsequent motion or renew the earlier motion if appropriate. (*Ibid.*) The issue of FNS’s failure to plead damages in the 4thACC is properly addressed at the hearing on the demurrer.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2203789	PROTECTIVE INSURANCE COMPANY vs FNS TRANSPORT INC.	MOTION FOR JUDGMENT ON THE PLEADINGS ON 3RD AMENDED CROSS-COMPLAINT

Tentative Ruling:

DENY as moot.

The Motion for Judgment on the Pleadings (MJOP) is to the TACC. For the reasons stated above, the Motion is denied without prejudice as moot.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2504760	BARRAGAN vs GUZMAN	MOTION TO SET ASIDE DISMISSAL

Tentative Ruling:

GRANT

The dismissal of Defendant Donald Mckinnon on 5/1/2026 is set aside.

Matter is set for an OSC Re: Dismissal for Failure to provide proof of service on Donald McKinnon, to be heard on: 9/21/2026, at 8:30am, D-4.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2505886	CINEMATIC CAPITAL CORP., vs WILLIAMS	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling:

The hearing on the demurrer is ordered continued to 10/21/2026, at 8:30am, D-4. The parties are ordered to further meet and confer regarding the demurrer.